IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

ITEM No. 115
(CAA)-47(PB)/2018

IN THE MATTER OF:
Nirvan Clothing Company Pvt. Ltd. and Mikasa Enterprises Pvt. Ltd. .... Applicant/Petitioner
Order under Section 230-232

Order delivered on 13.11.2018

Coram:
CHIEF JUSTICE (RTD.) M.M. KUMAR
Hon'ble President

Sh. S. K. MOHAPATRA,
Hon'ble Member (Technical)

For the Petitioner/Applicant : Mr. S. P Singh Chawla, Mr. Shashant Tripathi, Ms. Malini Sud, Advs.

For the Respondent : Mr. Subham Pandey, Adv. for OL
Ms. Sonam Sharma, CP for RD(NR)

ORDER

Despite last opportunity granted, counsel for the Income Tax Department has remained absent. The Income Tax Department in its reply dated 19.09.2018 has filed the status report and there is hardly any objection to the Scheme of Amalgamation. On behalf of RD, learned Company Prosecutor has submitted that there is no serious objection to the Scheme nor any observations in that regard have been highlighted. Learned counsel for the Official Liquidator has highlighted observations with regard to the pendency of payment of Income Tax. In the reply filed on 08.08.2018 (Diary No. 8371), the counsel for the petitioner has filed an affidavit on behalf of the petitioner stating that although the appeal is pending yet the arrears of Income Tax Department stand deposited and the challan depositing the amount has been placed on record as Annexure (1). It shows that amount of Rs. 1, 70,000/- which is arrear of Income Tax stand deposited.

Order reserved.

-Sd-

(M.M. KUMAR)
PRESIDENT

-Sd-

(S.K. MOHAPATRA)
(MEMBER TECHNICAL)

13.11.2018
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